| JUSTICE D.Y. CHANDRACHUD | 64 | Chief Justice of India |

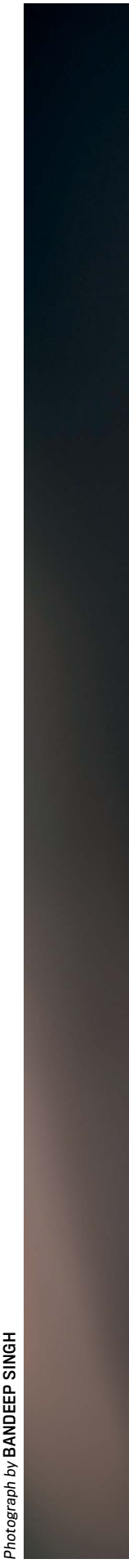
Defender of Rights

GUIDED BY THE TWIN IDEALS OF CONSTITUTIONAL MORALITY AND PERSONAL LIBERTY, CHANDRACHUD OFTEN DIFFERED WITH THE SAFE MAJORITY VIEW, BUT AVOIDED OPEN CONFLICT

By Kaushik Deka

IT

IS NOT OFTEN THAT A BLACK-ROBED FIGURE FROM THE AUGUST REALM of higher judiciary competes successfully for news space with those from the rough and tumble of politics and other humbler vocations—and mostly for creditable reasons. But when Justice Dhananjaya Yeshwant Chandrachud took oath as the 50th Chief Justice of India in November 2022, just over a month after the Supreme Court began live-streaming its proceedings, he was coincidentally to become the right man, at the right time, to shine a demotic torch on a rarefied, closed-circuit world. His disarming aspect—more young sociology prof than legal eminence grise—did no harm to that cause. Nor did his belief system. He declared right at the outset, reinforcing a budding climate of opinion around him, that matters of personal liberty would get priority under his watch. That ethical pledge would come to be redeemed also through work ethic: he instituted a system in the Supreme Court to facilitate the hearing of 10 bail matters and 10 transfer petitions on each weekday. When former law minister Kiren Rijiju put in a demurral that a constitutional court like the SC should not be hearing bail applications and PILs, the CJI responded by saying it is in fact duty-bound to act with urgency in matters of personal liberty and grant relief. As he wended through 2023 with a series of landmark judgments and clearly enounced words in public, an incipient but persuasive sense built up of a judicial rampart willing to lay down constitutional lines in the sand to the executive—though that graph sloped off gently as the year rounded off.



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